

	2025-01481522	pro hac vice are GRANTED. (Cal. Rules of Court, Rule 9.40.) <i>Case Management Conference set this date is vacated.</i> <i>Jury Trial set June 21, 2027 at 8:30 a.m. in Department C44.</i> <i>Trial estimate: 7 days</i> Moving parties shall give notice.
9	Truong vs. MKT, Inc. 2025-01495218	Demurrer to Amended Complaint Defendants Nguyen Thuy Linh and D&L Tran Corporation’s demurrer to plaintiff Manh Van Truong aka Mike Vungtau’s Second Amended Complaint [SAC] is SUSTAINED as to the 3rd cause of action for false light invasion of privacy and 5th cause of action for intentional and/or negligent infliction of emotional distress, with leave to amend, and otherwise OVERRULED. (Code Civ. Proc., § 430.10, subd. (e) [authorizing demurrer for failure to state facts sufficient to constitute a cause of action].) Plaintiff is granted 15 days’ leave to amend. Moving parties shall give notice. <u>1st cause of action: commercial misappropriation (Civ. Code, § 3344); 2nd cause of action: common law misappropriation.</u> These causes of action state sufficient facts. (Civ. Code, § 3344 [authorizing damages / civil penalties against “[a]ny person who knowingly uses another's name, voice, signature, photograph, or likeness, in any manner, on or in products, merchandise, or goods, or for purposes of advertising or selling, or soliciting purchases of, products, merchandise, goods, or services, without that person's prior consent”]; <i>Kirby v. Sega of America, Inc.</i> (2006) 144 Cal.App.4th 47, 55 [common law misappropriation elements]; SAC, ¶¶ 3-12, 14 [misappropriation, lack of consent, proximately caused damages].) Contrary to moving parties’ contentions, the SAC sufficiently alleges agency and/or ratification, either of which is sufficient to support joint liability by these moving parties. (SAC, ¶¶ 3, 5 [agency], 6, 11 [ratification]; <i>Skopp v. Weaver</i> (1976) 16 Cal.3d 432, 437 [“numerous cases have held a pleading of agency an averment of ultimate fact”]; <i>Spahn v. Guild Industries Corp.</i> (1979) 94 Cal.App.3d 143, 156 [“an agent's liability for